



**WYOMING RURAL PUBLIC TRANSIT PROGRAM FY 2023
RECIPIENT AGREEMENT BETWEEN
THE WYOMING DEPARTMENT OF TRANSPORTATION
AND
THE CITY OF CHEYENNE TRANSIT PROGRAM**

WYDOT Award Information		
Assistance Listing No. Not Applicable		Assistance Listing Title: State Transit Funds
Award Name: Wyoming Rural Public Transportation		Awarding Federal Agency: Not Applicable
Period of Performance Start and End Date: Term Start Date through December 31, 2023		Budget Period Start and End Date: Term Start Date through September 30, 2023
Agreement No.: RPT-23-141		Project No.: FT23141
Recipient UEI: KURKMZUFMY2		Recipient County: Laramie
WYDOT Program Mgr.: Leanna Humble Telephone: 307-777-4181 Email: Leanna.Humble@wyo.gov		WYDOT Contact for Confirmation of Funds: Telephone: (307) 777-4434 Email: dotrevenue@wyo.gov

1. **Parties.** The parties to this Agreement are the Wyoming Department of Transportation (WYDOT), whose address is 5300 Bishop Blvd., Cheyenne, WY 82009, and City of Cheyenne Transit Program (Recipient), whose address is 322 West Lincolnway, Cheyenne, WY 82001.

2. **Purpose.** This is a subaward of federal financial assistance from the WYDOT to the Recipient. The purpose of this Agreement is to provide the terms and conditions by which the Recipient shall provide transportation services to the general and special public (Project).

Pursuant to Wyo. Stat. §§ 24-15-101 and 24-15-102 WYDOT is authorized to distribute these program funds in accordance with guidelines of the WYDOT State Management Plan and the Master Agreement with the Federal Transit Administration (FTA). This Agreement is also subject to all the Certifications and Assurances required by the FTA.

WYDOT and the Recipient desire to secure and utilize grant funds for the public transportation needs in small urban and rural areas in the State of Wyoming.

3. **Term of Agreement.** This Agreement is effective when all parties have executed it (Effective Date). The term of this Agreement is from October 1, 2022, or the Effective Date, whichever is later (Term Start Date), through September 30, 2023. The Recipient's

Budget Period is from the Term Start Date, through September 30, 2023. The Recipient's timeframe to complete the work under this Agreement (Period of Performance) is from the Term Start Date through December 31, 2023.

4. **Payment.**

- A. WYDOT agrees to reimburse the Recipient for the Project described in Section 2 above. The total reimbursement shall not exceed **Three Hundred Thousand Dollars and No Cents (\$300,000.00), comprised of up to Three Hundred Thousand Dollars and No Cents (\$300,000.00) State Funding.** The Recipient agrees that it will provide from local and unrestricted Federal funds, monies in the amount sufficient together with the Grant to assure payment of the actual Project costs. The Recipient's eligible costs incurred shall be reimbursed on an approved WYDOT reimbursement request form. WYDOT reserves the right to request support documentation for any and all submittals. WYDOT will reimburse those eligible costs based on the program guidelines for the item categories and its appropriate reimbursement ratio. Requests for reimbursement shall be submitted monthly, but may not exceed quarterly submittals. Therefore, reimbursement requests for expenses more than three months removed from the reimbursement request submittal to WYDOT may not be processed for payment by WYDOT. Final invoices for reimbursement will be accepted by WYDOT no later than forty-five (45) days from the expiration date of the Agreement as outlined in Section 3 above. The basis for reimbursement shall be **Net Operating Deficit (Total Operating Expense – Farebox = Net Operating Deficit): State Fifty-six and Fifty-six hundredths percent (56.56%), Local Forty-three and Forty-four hundredths percent (43.44%); Administration, Maintenance, and Capital: State eighty percent (80%), Local Twenty percent (20%).** The Recipient shall initiate and prosecute to completion all actions necessary to enable the Recipient to provide its share of the Project costs at or prior to the time that such funds are needed to meet Project costs. Reimbursement shall be made within forty-five (45) days after submission of invoice pursuant to Wyo. Stat. § 16-6-602. The Recipient shall submit invoices in sufficient detail to ensure that reimbursements may be made in conformance with this Agreement.
- B. No reimbursement shall be made for work performed before the Effective Date of this Agreement. Should the Recipient fail to perform in a manner consistent with the terms and conditions set forth in this Agreement, payment under this Agreement may be withheld until such time as the Recipient performs its duties and responsibilities to the satisfaction of WYDOT.
- C. Except as otherwise provided in this Agreement, the Recipient shall pay all costs and expenses, including travel, incurred by Recipient or on its behalf in connection



with Recipient's performance and compliance with all of Recipient's obligations under this Agreement.

- D.** This Agreement is required to comply with the Federal Funding Accountability and Transparency Act (FFATA) of 2006. As the prime recipient of these funds, WYDOT will report the required information to the Federal Funding Accountability and Transparency Act Subaward Reporting System (FSRS). WYDOT requires quarterly reporting of ridership and inventory updates for all Recipients of vehicle Agreements. The FFATA requires any person or entity receiving contract or grant funds directly from the federal government to report certain information regarding those funds through a centralized website, www.fsrs.gov. The law requires that you provide your Data Universal Numbering System (DUNS) number to WYDOT. This requirement means you need to be registered with DUNS and Bradstreet. Instructions for this process can be found at www.dnb.com. Additional information regarding this Act may be found at the following sites:

<http://edocket.access.gpo.gov/2010/pdf/2010-22705.pdf>

and

<http://edocket.access.gpo.gov/2010/pdf/2010-22706.pdf>.

5. Responsibilities of the Parties.

- A. Project Scope.** The Recipient shall undertake and complete the Project in accordance with this Agreement and as described in its application, which is incorporated into this Agreement by this reference.
- (i) Provide public transportation services throughout the community.
- B.** The Recipient shall abide by the terms found in Attachment A, which is attached to and incorporated into this Agreement by this reference.
- C.** WYDOT agrees to reimburse the Recipient in accordance with Section 4 above.
- D. Purchase of Project Equipment.** The purchase of all Project equipment financed in whole or in part pursuant to this Agreement shall be undertaken by WYDOT on behalf of the Recipient or with prior WYDOT approval in accordance with the procedures established by WYDOT. Purchases of over one thousand dollars (\$1,000.00) using Federal or State funds will be subject to approval of WYDOT in accordance with established procedures.



- E. Title to Project Equipment.** Title to Project Equipment shall be in the name of the Recipient subject to the restrictions on use and disposition of the Project Equipment set forth herein. The following notification shall be typed on the face of the title document of each vehicle by the County Clerk: “WYDOT Grant – Restricted.” It is the responsibility of the Recipient to ensure the County Clerk is notified of this requirement.
- F. Use of Project Equipment.** The Recipient agrees that the Project equipment, and/or facilities, shall be used for the purpose for which it was acquired, as long as it is needed in the Project. If the Project equipment is no longer needed, or cannot be used for the intended purpose, prior to selling or otherwise disposing of the Project equipment, the Recipient shall immediately notify WYDOT. Before selling or otherwise disposing of the Project equipment, the Recipient must receive a notification from WYDOT allowing the sale or disposal. The Recipient shall not execute any lease, pledge, mortgage, lien, or other contract touching or affecting the Federal interest in any Project equipment, nor shall it obligate itself in any other manner, with any third party with respect to the Project equipment, unless such lease, pledge, mortgage, lien, contract, or other obligation is either in conformance with the standards of FTA guidelines or is otherwise expressly authorized in writing by WYDOT; nor shall the Recipient or any other organization that obtains facilities or equipment through this Grant, by any act or omission of any kind, impair its continuing control over the use of Project equipment. The Recipient shall maintain satisfactory records with regard to the use of the property and submit to WYDOT upon request such information as is required in order to assure compliance with this section. The Recipient shall immediately notify WYDOT in all cases where Project equipment is used in a manner substantially different from that described in the Project description. The Recipient shall maintain an amount and form satisfactory to WYDOT such insurance or self-insurance as will be adequate to protect Project equipment throughout the period of required use. During the period of contract performance, the Recipient shall maintain the Project equipment at a high level of cleanliness, safety and mechanical soundness. The Recipient shall maintain equipment in accordance to their WYDOT approved Maintenance Plan adopted by its Board or Governing Body and on file with WYDOT. WYDOT and the FTA shall have the right to monitor maintenance records in order to confirm that proper upkeep has been conducted pursuant to this section.
- G. Prohibited Interest.** No member, officer or employee of the Recipient during his tenure or one year thereafter shall have any interest, direct or indirect, in this Agreement or the proceeds thereof.
- H. Restrictions, Prohibitions, Controls and Labor Provisions**



- (i) Equal Employment Opportunity. In connection with carrying out of the Project, the Recipient shall not discriminate against any employee or applicant for employment because of race, color, age, creed, sex, national origin or disability. The Recipient shall take affirmative action to ensure that applicants are employed, and that employees are treated during employment, without regard to their race, color, creed, sex, age, national origin or disability. Such action shall include, but not be limited to, the following: employment, upgrading, demotion or transfer, recruitment or recruitment advertising, layoff or termination; rates of pay or other forms of compensation; and selection for training, including apprenticeship.
- (ii) Disadvantaged Business Enterprise (DBE) Requirements.
1. Policy. It is the policy of WYDOT that disadvantaged business enterprises, defined as Minority Business Enterprises and Woman Business Enterprises, shall have the maximum opportunity to participate in the performance of contracts financed in whole or in part with Federal funds under this Agreement. Consequently, the DBE requirements of 49 CFR Part 26 applies to this Agreement.
 2. DBE Obligation. The Recipient or its contractor agrees to ensure that disadvantaged business enterprises as defined in 49 CFR Part 26 have the maximum opportunity to participate in the performance of contracts and subcontracts financed in whole or in part with Federal funds provided under this Agreement. In this regard, all Recipients shall take all necessary and reasonable steps in accordance with 49 CFR Part 26 to ensure that DBE's have the maximum opportunity to compete for and perform contracts. The Recipient and their contractors shall not discriminate on the basis of race, color, national origin, or sex in the award and performance of WYDOT assisted contracts.
- (iii) Title VI Civil Rights Act of 1964. The Recipient shall comply and shall assure the compliance by contractors and subcontractors under this Project with all the requirements imposed by Title VI of the Civil Rights Act of 1964 (49 U.S.C. 2000d), the Regulations of the Department of Transportation (DOT) issued there under, 49 CFR Part 21, and the Assurance by the Recipient pursuant thereto.
- (iv) Compliance with Elderly and Disabled Regulations. The Recipient shall comply with applicable regulations regarding transportation for Elderly and Disabled person, set forth in 49 CFR Part 27 and the Americans with Disabilities Act of 1990.



- (v) Domestic Preferences for Procurement. Requires a preference for the purchase, acquisition, or use of goods, products or materials produced in the United States (including but not limited to iron, aluminum, steel, cement, and other manufactured products) in accordance to 2 CFR 200.322.
- (vi) Prohibition of Certain Telecommunications and Video Surveillance Services or Equipment. Prohibits procuring, obtaining, extending, renewing or entering into contracts for equipment or services from manufacturers listed in 2 CFR 200.216.
- (vii) Never Contract with the Enemy: Federal awarding agencies and recipients are subject to the regulations implementing Never Contract with the Enemy in 2 CFR part 183. The regulations in 2 CFR part 183 affect covered contracts, grants, and cooperative agreements that are expected to exceed fifty thousand dollars (\$50,000.00) within the period of performance, are performed outside the United States and its territories, and are in support of a contingency operation in which members of the Armed Forces are actively engaged in hostilities in accordance to 2 CFR 200.215.
- (viii) The Recipient agrees that 49 U.S.C. § 5333 – Labor standards applies to this Agreement. The Certifications and Warranties are available from the FTA and WYDOT upon request and are incorporated by reference into this Agreement. Below is a brief summary of the requirements as well as program applicability.

1. Prevailing Wage Requirements. Construction work financed in whole or part by the FTA shall require the provisions of Davis-Bacon Apply.
2. Employee Protective Arrangements. As a condition of 49 U.S.C. §§ 5307-5312, 5337 and/or 5339 employers are required to provide workers with basic protections as required by the Department of Labor. This includes the Special Warranty; details can be found on the Department of Labor's website at <http://www.dol.gov/olms/regs/compliance/compltransit.htm> or may be obtained by contacting the Department at (202) 693-0126.

An employer who receives Federal mass transit funds must protect all covered mass transit employees affected by the use of the Federal money. The Department of Labor must approve the arrangements made to protect these employees. For covered employees the arrangements include:



- (a) preserving their rights and benefits;
- (b) continuing their collective bargaining rights;
- (c) protecting them against a worsening of their employment conditions;
- (d) assuring jobs for employees of acquired mass transit systems;
- (e) providing priority of reemployment if the employee is laid off or his job is eliminated; and
- (f) providing paid training.

I. Motor Vehicle Safety

- (i) Motor Vehicle Safety Standards. The motor vehicles will comply with the Motor Vehicle Safety Standards and Pollution requirements as established by the United States Department of Transportation.
- (ii) Motor Vehicle Requirements. When new motor vehicles are purchased, there shall be obtained from each vendor a certification in writing that: "The horsepower of the vehicle is adequate for the speed, range and terrain in which it will be required to operate and also to meet the demands of all auxiliary power equipment."

J. Nondiscrimination On The Basis of Disability - 504 Regulations

- (i) The Recipient shall ensure to WYDOT that persons with disabilities and groups representing them have had adequate notice of and opportunity to comment on the present and proposed plans for providing transportation to disabled persons unable to use general public service.
- (ii) The Recipient must certify to WYDOT that special efforts are being made to provide transportation to eligible disabled persons. This service must be reasonable in cost, meet a significant fraction for such transportation needs, and be provided within a reasonable time.
- (iii) The Recipient is to submit a status report to WYDOT (updated every three years). The report must include:
 1. A description of the service to the disabled, as compared to the general public service.
 2. Copies or a summary of the comments received in response to the opportunity to comment.
 3. A statement of any plans to significantly modify the services.
 4. A statement of the resources devoted to the disabled service.



- K. Safety Jurisdiction.** FTA requires that all Recipients operate their service in a safe manner and not allow any conditions to develop that “create a serious hazard of death or injury.”

Safety Training Classes are a mandated requirement of the Safety Jurisdiction clause. Driver Safety and Passenger Assistance Training (TSI) or equal approved training, ADA compliance training, and other technical training programs are required on a regular basis (as specified by the State Management Plan). The Wyoming Public Transportation Association (WYTRANS) may charge reasonable fees for the training. WYTRANS shall record all such program income, attendance (names and agencies) and costs. WYTRANS shall maintain records and files of this training information. The Recipient shall maintain independent employee training records for their file as well. The Recipient shall notify WYTRANS of any employee needed training to keep current with the requirements of this section. If safety violations are found and a Recipient fails to correct them, or comply with the training mandate, further financial assistance may be withheld.

- L. Emergency Management.** All Recipients are required by WYDOT to cooperate and coordinate with Emergency Management agencies in their area during natural or man-made disasters. All FTA vehicles shall be used to transport people and/or equipment as directed by WYDOT. All Recipients shall use their communication equipment to insure timely evacuation of elderly and disabled people in their area.

M. Records and Reports

- (i) Establishment and Maintenance of Accounting Records.** The Recipient shall establish and maintain, in accordance with requirements established by WYDOT, separate accounts for the Project, either independently or within its existing accounting system, to be known as the Project Account.
- (ii) Documentation of Project Costs.** All charges to the Project Account shall be supported by properly executed invoices, contracts or vouchers evidencing in proper detail the nature and propriety of the charges, in accordance with the rules and regulations of WYDOT. Copies and/or supporting documentation of such invoices, contracts or vouchers may be included with monthly billing statements to cover all charges submitted for payment. The original documentation should be maintained by the Recipient in the Project file and must be available to WYDOT upon request.
- (iii) Checks, Orders and Vouchers.** Any check or order drawn by the Recipient with respect to any item which is or will be chargeable against the Project



Account will be drawn only in accordance with a properly signed voucher then on file in the office of the Recipient stating in proper detail the purpose for which such check or order is drawn. All checks, invoices, contracts, vouchers, orders or other accounting documents pertaining in whole or in part to the Project shall be clearly identified, readily accessible and, to the extent feasible, kept separate and apart from all other such documents.

- (iv) **Reports.** The Recipient shall advise WYDOT regarding the progress of the Project at such times and in such manner as WYDOT may require, including, but not limited to meetings and interim reports. The Recipient shall submit, accompanying the monthly reimbursement report, ridership data reports on approved WYDOT forms. Requests for reimbursement will not be processed for payment by WYDOT without a completed ridership data for the period of the reimbursement request. The Recipient shall submit to WYDOT, or its authorized representatives, an inventory of all vehicles, facilities, and equipment purchased by the Recipient as part of the Project, all transportation services rendered by the Recipient by the use of such vehicles, facilities and equipment, and all relevant Project data and records. The Recipient shall also permit the above-named persons to examine the books, records and accounts of the Recipient pertaining to the Project. If the Recipient has an audit performed for their own purposes, the Recipient agrees to provide WYDOT with a copy of such audit report. The Recipient shall keep records and audit reports on file for three years after the close of their fiscal year.

6. **Special Provisions**

- A. **Assumption of Risk.** The Recipient shall assume the risk of any loss of state or federal funding, either administrative or program dollars, due to the Recipient's failure to comply with state or federal requirements. WYDOT shall notify the Recipient of any state or federal determination of noncompliance.
- B. **Conflict of Interest.** Per 2 CFR 200.112, the Recipient must disclose in writing any potential conflict of interest to WYDOT including financial or other personal interests.
- C. **Environmental Policy Acts.** The Recipient agrees all activities under this Agreement will comply with the Clean Air Act, the Clean Water Act, the National Environmental Policy Act, and other related provisions of federal environmental protection laws, rules or regulations.



- D. Human Trafficking.** As required by 22 U.S.C. § 7104(g) and 2 CFR Part 175, this Agreement may be terminated without penalty if a private entity that receives funds under this Agreement:
- (i) Engages in severe forms of trafficking in persons during the period of time that the award is in effect;
 - (ii) Procures a commercial sex act during the period of time that the award is in effect; or
 - (iii) Uses forced labor in the performance of the award or subawards under the award.
- E. Kickbacks.** The Recipient certifies and warrants that no gratuities, kickbacks, or contingency fees were paid in connection with this Agreement, nor were any fees, commissions, gifts, or other considerations made contingent upon the award of this Agreement. If the Recipient breaches or violates this warranty, WYDOT may, at its discretion, terminate this Agreement without liability to WYDOT, or deduct from the agreed upon price or consideration, or otherwise recover, the full amount of any commission, percentage, brokerage, or contingency fee. The Recipient shall comply with the Copeland Anti-Kickback Act (18 U.S.C. § 874) as supplemented in the Department of Labor Regulations (29 CFR, Part 3). This Act provides that the Recipient is prohibited from inducing, by any means, any person employed in the construction, completion, or repair of public works to give up any part of the compensation to which he or she is otherwise entitled.
- F. Limitations on Lobbying Activities.** By signing this Agreement, the Recipient certifies and agrees that, in accordance with P.L. 101-121, payments made from a federal grant shall not be utilized by the Recipient or its subcontractor in connection with lobbying member(s) of Congress, or any federal agency in connection with the award of a federal grant, contract, cooperative agreement, or loan. The Recipient and subcontractors may also be required to submit an additional certification statement and disclosure form acceptable to WYDOT before commencement of the work.
- G. Mandatory Disclosures.** Per 2 CFR 200.113, the Recipient must disclose, in a timely manner, in writing to WYDOT all violations of Federal criminal law involving fraud, bribery, or gratuity violations potentially affecting this award. Failure to make required disclosures can result in remedies for noncompliance including suspension or debarment.



- H. Monitoring Activities.** WYDOT shall have the right to monitor all activities related to this Agreement that are performed by the Recipient or its subcontractors. This shall include, but not be limited to, the right to make site inspections at any time and with reasonable notice; to bring experts and consultants on site to examine or evaluate completed work or work in progress; to examine the books, ledgers, documents, papers, and records pertinent to this Agreement; and, to observe personnel in every phase of performance of the related work
- I. Nondiscrimination.** The Recipient shall comply with the Civil Rights Act of 1964, the Wyoming Fair Employment Practices Act (Wyo. Stat. § 27-9-105, *et seq.*), the Americans with Disabilities Act (ADA), 42 U.S.C. § 12101, *et seq.*, and the Age Discrimination Act of 1975 and any properly promulgated rules and regulations thereto and shall not discriminate against any individual on the grounds of age, sex, color, race, religion, national origin, or disability in connection with the performance under this Agreement.
- J. No Finder's Fees:** No finder's fee, employment agency fee, or other such fee related to the procurement of this Agreement, shall be paid by either party.
- K. Publicity.** Any publicity given to the projects, programs, or services provided herein, including, but not limited to, notices, information, pamphlets, press releases, research, reports, signs, and similar public notices in whatever form, prepared by or for the Recipient and related to the services and work to be performed under this Agreement, shall identify WYDOT as the sponsoring agency and shall not be released without prior written approval of WYDOT.
- L. Suspension and Debarment.** By signing this Agreement, Recipient certifies that neither it nor its principals/agents are presently debarred, suspended, proposed for debarment, declared ineligible, or voluntarily excluded from participation in this transaction or from receiving federal financial or nonfinancial assistance, nor are any of the participants involved in the execution of this Agreement suspended, debarred, or voluntarily excluded by any federal department or agency in accordance with Executive Order 12549 (Debarment and Suspension), 44 CFR Part 17, or 2 CFR Part 180, or are on the debarred, or otherwise ineligible, vendors lists maintained by the federal government. Further, Recipient agrees to notify WYDOT by certified mail should it or any of its principals/agents become ineligible for payment, debarred, suspended, or voluntarily excluded from receiving federal funds during the term of this Agreement.
- M. Administration of Federal Funds.** The Recipient agrees its use of the funds awarded herein is subject to the Uniform Administrative Requirements of 2 CFR Part 200, *et seq.*; any additional requirements set forth by the federal funding



agency; all applicable regulations published in the Code of Federal Regulations; and other program guidance as provided to it by WYDOT.

- N. Copyright License and Patent Rights.** The Recipient acknowledges that federal grantor, the State of Wyoming, and WYDOT reserve a royalty-free, nonexclusive, unlimited, and irrevocable license to reproduce, publish, or otherwise use, and to authorize others to use, for federal and state government purposes: (1) the copyright in any work developed under this Agreement; and (2) any rights of copyright to which the Recipient purchases ownership using funds awarded under this Agreement. The Recipient must consult with WYDOT regarding any patent rights that arise from, or are purchased with, funds awarded under this Agreement.
- O. Federal Audit Requirements.** The Recipient agrees that if it expends an aggregate amount of seven hundred fifty thousand dollars (\$750,000.00) or more in federal funds during its fiscal year, it must undergo an organization-wide financial and compliance single audit. The Recipient agrees to comply with the audit requirements of the U.S. General Accounting Office Government Auditing Standards and Audit Requirements of 2 CFR Part 200, Subpart F. If findings are made which cover any part of this Agreement, the Recipient shall provide one (1) copy of the audit report to WYDOT and require the release of the audit report by its auditor be held until adjusting entries are disclosed and made to WYDOT's records.
- P. Non-Supplanting Certification.** The Recipient hereby affirms that federal grant funds shall be used to supplement existing funds, and shall not replace (supplant) funds that have been appropriated for the same purpose. The Recipient should be able to document that any reduction in non-federal resources occurred for reasons other than the receipt or expected receipt of federal funds under this Agreement.
- Q. Program Income.** The Recipient shall not deposit grant funds in an interest bearing account without prior approval of WYDOT. Any income attributable to the grant funds distributed under this Agreement must be used to increase the scope of the program or returned to WYDOT.

7. General Provisions

- A. Amendments.** Any changes, modifications, revisions, or amendments to this Agreement which are mutually agreed upon by the parties to this Agreement shall be incorporated by written instrument, executed by all parties to this Agreement.
- B. Applicable Law, Rules of Construction, and Venue.** The construction, interpretation, and enforcement of this Agreement shall be governed by the laws of the State of Wyoming, without regard to conflicts of law principles. The terms



“hereof,”“hereunder,”“herein,” and words of similar import, are intended to refer to this Agreement as a whole and not to any particular provision or part. The Courts of the State of Wyoming shall have jurisdiction over this Agreement and the parties. The venue shall be the First Judicial District, Laramie County, Wyoming.

- C. Assignment Prohibited and Agreement Shall Not be Used as Collateral.** Neither party shall assign or otherwise transfer any of the rights or delegate any of the duties set out in this Agreement without the prior written consent of the other party. The Recipient shall not use this Agreement, or any portion thereof, for collateral for any financial obligation without the prior written permission of WYDOT.
- D. Audit and Access to Records.** WYDOT and its representatives shall have access to any books, documents, papers, electronic data, and records of the Recipient which are pertinent to this Agreement. The Recipient shall immediately, upon receiving written instruction from WYDOT, provide to any independent auditor accountant all books, documents, papers, electronic data, and records of the Recipient which are pertinent to this Agreement. The Recipient shall cooperate fully with any such independent auditor or accountant during the entire course of any audit authorized by WYDOT.
- E. Availability of Funds.** Each payment obligation of WYDOT is conditioned upon the availability of government funds which are appropriated or allocated for the payment of this obligation and which may be limited for any reason including, but not limited to, congressional, legislative, gubernatorial, or administrative action. If funds are not allocated and available for continued performance of the Agreement, the Agreement may be terminated by WYDOT at the end of the period for which the funds are available. WYDOT shall notify the Recipient at the earliest possible time of the services which will or may be affected by a shortage of funds. No penalty shall accrue to WYDOT in the event this provision is exercised, and WYDOT shall not be obligated or liable for any future payments due or for any damages as a result of termination under this section.
- F. Award of Related Agreements.** WYDOT may award supplemental or successor Agreements for work related to this Agreement or may award Agreements to other recipients for work related to this Agreement. The Recipient shall cooperate fully with other recipients and WYDOT in all such cases.
- G. Compliance with Laws.** The Recipient shall keep informed of and comply with all applicable federal, state, and local laws and regulations, and all federal grant requirements and executive orders in the performance of this Agreement.
- H. Confidentiality of Information.** Except when disclosure is required by the Wyoming Public Records Act or court order, all documents, data compilations,



reports, computer programs, photographs, data, and other work provided to or produced by the Recipient in the performance of this Agreement shall be kept confidential by the Recipient unless written permission is granted by WYDOT for its release. If and when Recipient receives a request for information subject to this Agreement, Recipient shall notify WYDOT within ten (10) days of such request and shall not release such information to a third party unless directed to do so by WYDOT.

- I. Entirety of Agreement.** This Agreement, consisting of eighteen (18) pages; Attachment “A”, Award Letter, consisting of one (1) page; and the Recipient’s Application, represent the entire and integrated Agreement between the parties and supersede all prior negotiations, representations, and agreements, whether written or oral. In the event of a conflict or inconsistency between the language of this Agreement and the language of any attachment or document incorporated by reference, the language of this Agreement shall control.
- J. Ethics.** Recipient shall keep informed of and comply with the Wyoming Ethics and Disclosure Act (Wyo. Stat. § 9-13-101, *et seq.*) and any and all ethical standards governing Recipient’s profession.
- K. Extensions.** Nothing in this Agreement shall be interpreted or deemed to create an expectation that this Agreement will be extended beyond the term described herein. Any extension of this Agreement shall be initiated by WYDOT and shall be accomplished through a written amendment between the parties entered into before the expiration of the original Agreement or any valid amendment thereto, and shall be effective only after it is reduced to writing and executed by all parties to the Agreement.
- L. Force Majeure.** Neither party shall be liable for failure to perform under this Agreement if such failure to perform arises out of causes beyond the control and without the fault or negligence of the nonperforming party. Such causes may include, but are not limited to, acts of God or the public enemy, fires, floods, epidemics, quarantine restrictions, freight embargoes, and unusually severe weather. This provision shall become effective only if the party failing to perform immediately notifies the other party of the extent and nature of the problem, limits delay in performance to that required by the event, and takes all reasonable steps to minimize delays.
- M. Indemnification.** Each party to this Agreement shall assume the risk of any liability arising from its own conduct. Neither party agrees to insure, defend, or indemnify the other.
- N. Independent Contractor.** The Recipient shall function as an independent contractor for the purposes of this Agreement and shall not be considered an



employee of the State of Wyoming for any purpose. Consistent with the express terms of this Agreement, the Recipient shall be free from control or direction over the details of the performance of services under this Agreement. The Recipient shall assume sole responsibility for any debts or liabilities that may be incurred by the Recipient in fulfilling the terms of this Agreement and shall be solely responsible for the payment of all federal, state, and local taxes which may accrue because of this Agreement. Nothing in this Agreement shall be interpreted as authorizing the Recipient or its agents or employees to act as an agent or representative for or on behalf of the State of Wyoming or WYDOT or to incur any obligation of any kind on behalf of the State of Wyoming or WYDOT. The Recipient agrees that no health or hospitalization benefits, workers' compensation, unemployment insurance, or similar benefits available to State of Wyoming employees will inure to the benefit of the Recipient or the Recipient's agents or employees as a result of this Agreement.

- O. Notices.** All notices arising out of, or from, the provisions of this Agreement shall be in writing either by regular mail or delivery in person at the addresses provided under this Agreement.
- P. Ownership and Return of Documents and Information.** WYDOT is the official custodian and owns all documents, data compilations, reports, computer programs, photographs, data, and other work provided to or produced by the Recipient in the performance of this Agreement. Upon termination of services, for any reason, Recipient agrees to return all such original and derivative information and documents to WYDOT in a useable format. In the case of electronic transmission, such transmission shall be secured. The return of information by any other means shall be by a parcel service that utilizes tracking numbers.
- Q. Patent or Copyright Protection.** The Recipient recognizes that certain proprietary matters or techniques may be subject to patent, trademark, copyright, license, or other similar restrictions, and warrants that no work performed by the Recipient or its sub-recipients will violate any such restriction. The Recipient shall defend and indemnify WYDOT for any infringement or alleged infringement of such patent, trademark, copyright, license, or other restrictions.
- R. Prior Approval.** This Agreement shall not be binding upon either party, no services shall be performed, and the Wyoming State Auditor shall not draw warrants for payment, until this Agreement has been fully executed, approved as to form by the Office of the Attorney General, filed with and approved by A&I Procurement, and approved by the Governor of the State of Wyoming, or his designee, if required by Wyo. Stat. § 9-2-3204(b)(iv).
- S. Insurance Requirements.** Recipient is protected by the Wyoming Governmental Claims Act, Wyo. Stat. § 1-39-101, et seq., and certifies that it is a member of the



Wyoming Association of Risk Management (WARM) pool or the Local Government Liability Pool (LGLP), Wyo. Stat. § 1-42-201, *et seq.*, and shall provide a letter verifying its participation in the WARM or LGLP to WYDOT.

- T. Severability.** Should any portion of this Agreement be judicially determined to be illegal or unenforceable, the remainder of the Agreement shall continue in full force and effect, and the parties may renegotiate the terms affected by the severance.
- U. Sovereign Immunity and Limitations.** Pursuant to Wyo. Stat. § 1-39-104(a), the State of Wyoming and WYDOT expressly reserve sovereign immunity by entering into this Agreement and the Recipient expressly reserves governmental immunity. Each of them specifically retains all immunities and defenses available to them as sovereigns or governmental entities pursuant to Wyo. Stat. § 1-39-101, *et seq.*, and all other applicable law. The parties acknowledge that the State of Wyoming has sovereign immunity and only the Wyoming Legislature has the power to waive sovereign immunity. Designations of venue, choice of law, enforcement actions, and similar provisions shall not be construed as a waiver of sovereign immunity. The parties agree that any ambiguity in this Agreement shall not be strictly construed, either against or for either party, except that any ambiguity as to immunity shall be construed in favor of immunity.
- V. Taxes.** The Recipient shall pay all taxes and other such amounts required by federal, state, and local law, including, but not limited to, federal and social security taxes, workers' compensation, unemployment insurance, and sales taxes.
- W. Termination of Agreement.** This Agreement may be terminated, without cause, by WYDOT upon thirty (30) days written notice. This Agreement may be terminated by WYDOT immediately for cause if the Recipient fails to perform in accordance with the terms of this Agreement.
- X. Third-Party Beneficiary Rights.** The parties do not intend to create in any other individual or entity the status of third-party beneficiary, and this Agreement shall not be construed so as to create such status. The rights, duties, and obligations contained in this Agreement shall operate only between the parties to this Agreement and shall inure solely to the benefit of the parties to this Agreement. The provisions of this Agreement are intended only to assist the parties in determining and performing their obligations under this Agreement.
- Y. Time is of the Essence.** Time is of the essence in all provisions of this Agreement.
- Z. Titles Not Controlling.** Titles of sections and subsections are for reference only and shall not be used to construe the language in this Agreement.



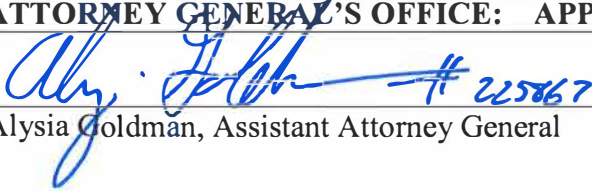
- AA. Waiver.** The waiver of any breach of any term or condition in this Agreement shall not be deemed a waiver of any prior or subsequent breach. Failure to object to a breach shall not constitute a waiver.
- BB. Counterparts.** This Agreement may be executed in counterparts. Each counterpart, when executed and delivered, shall be deemed an original and all counterparts together shall constitute one and the same Agreement. Delivery by the Recipient of an originally signed counterpart of this Agreement by facsimile or PDF shall be followed up immediately by delivery of the originally signed counterpart to WYDOT.

THE REMAINDER OF THIS PAGE WAS INTENTIONALLY LEFT BLANK.



8. **Signatures.** The parties to this Agreement, either personally or through their duly authorized representatives, have executed this Agreement on the dates set out below and certify that they have read, understood, and agreed to the terms and conditions of this Agreement.

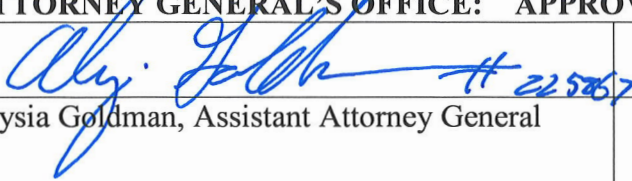
The Effective Date of this Agreement is the date of the signature last affixed to this page.

ATTORNEY GENERAL'S OFFICE: APPROVAL AS TO FORM		
 # 225867		7/12/22
Alysia Goldman, Assistant Attorney General		Date:
RECIPIENT:		
CITY OF CHEYENNE TRANSIT PROGRAM		
Patrick Collins, Mayor		
ATTEST SEAL		
Kristina F. Jones, City Clerk		Date:
WYDOT:		
WYOMING DEPARTMENT OF TRANSPORTATION		
Keith R. Fulton, P.E. Assistant Chief Engineer – Planning and Engineering		Date:
ATTEST:		
Caitlin Casner, Secretary Transportation Commission of Wyoming		Date:
Date Prepared: September 1, 2022		



8. **Signatures.** The parties to this Agreement, either personally or through their duly authorized representatives, have executed this Agreement on the dates set out below and certify that they have read, understood, and agreed to the terms and conditions of this Agreement.

The Effective Date of this Agreement is the date of the signature last affixed to this page.

ATTORNEY GENERAL'S OFFICE: APPROVAL AS TO FORM		
		9/12/22
Alysia Goldman, Assistant Attorney General		Date:
RECIPIENT:		
CITY OF CHEYENNE TRANSIT PROGRAM		
Name		
Title		Date:
WYDOT:		
WYOMING DEPARTMENT OF TRANSPORTATION		
Keith R. Fulton, P.E. Assistant Chief Engineer – Planning and Engineering		Date:
ATTEST:		
Caitlin Casner, Secretary Transportation Commission of Wyoming		Date:
Date Prepared: September 1, 2022		





Mark Gordon
Governor

WYOMING Department of Transportation

"Providing a safe, high quality, and efficient transportation system"

5300 Bishop Boulevard, Cheyenne, Wyoming 82009-3340



K. Luke Reiner
Director

September 2, 2022

City of Cheyenne Transit Program
Attention: Renae Jording, Director
322 West Lincolnway
Cheyenne, WY 82001

RE: Fiscal Year 2023 Rural Public Transit Program – 5311 Award Letter

Dear Renae,

Congratulations, this letter is the City of Cheyenne Transit Program's Fiscal Year 2023 Wyoming Rural Public Transit Program Award Letter for 2023 5311 funding. Details of the awarded funding are in the table below.

	Operating	Administration	Maintenance
5311 Award Amount	\$300,000	N/A	N/A
Local Match	N/A	N/A	N/A
Local Match Percent	N/A	N/A	N/A
Total 5311 Award	\$300,000.00		
Required Local Match	\$0.00		
Total	\$300,000.00		

Important items to note:

- ***This letter is NOT a Notice to Proceed and any costs incurred prior to receipt of the Notice to Proceed will not be considered for reimbursement.***
- The Cooperative Agreement is in process and will be forwarded to your attention as soon as it is available.

Should you have any questions, contact me at 307-777-3938 or Shauna.Perkins2@wyo.gov. Thank you for the great work you do for the people of Wyoming!

Sincerely,

Shauna Perkins
Shauna Perkins
Local Government Specialist